CABLETRON ENTERPRISES PRIVATE LIMITED
versus
THE MINISTER OF LOCAL GOVERNMENT AND PUBLIC WORKS N.O
and
THE SHERIFF OF THE HIGH COURT N.O
and
THE REGISTRAR OF DEEDS N.O
and
THE SURVEYOR GENERAL N.O
and
CITY OF HARARE

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE, 20 and 22 May 2026

Opposed Application

J B Matandire, for the applicant
F. Chimunoko, for first respondent

MAMBARA J:

[1] This is a court application for a compelling order. The applicant seeks an order compelling the respondents to process stand numbering, issue survey instructions, carry out title survey, issue dispensation certificates and transfer to it certain pieces of land situate in the District of Salisbury, being stands created on Plan Reference Numbers HOA1374 to HOA1391, Mabelreign Township.

[2] The application was filed as an opposed matter. On the papers, the applicant raised a point *in limine* that the first respondent had not properly opposed the application because the opposing affidavit deposed to by the Minister of Local Government and Public Works, Honourable Daniel Garwe, was not dated. At the commencement of the hearing, counsel for the applicant initially indicated that he was abandoning the point. The court then enquired what it was expected to do with an affidavit whose jurat was not dated. Counsel thereafter elected to argue the point *in limine.*

[3] The point is not a minor forensic trap. In application proceedings affidavits constitute evidence. If there is no valid opposing affidavit, there is no evidence placed before the court in opposition to the application. A notice of opposition, without a valid affidavit, is an empty procedural shell.

[4] The impugned affidavit appears under the hand of Daniel Garwe. Its execution clause reads, in substance, "THUS DONE and SIGNED at HARARE this ..... day of .... 2025". The date was not inserted. Beneath that clause appears a commissioner's stamp bearing 03 November 2025. The date of filing, receipt or stamping is not the date endorsed in the jurat as the date on which the oath was administered. The jurat remains blank.

[5] The respondent's own heads sought to meet this defect by arguing substance over form, namely that where a commissioner signs and stamps the affidavit, the court should infer that the affidavit was sworn on the stamped date. That submission cannot stand. The issue is not whether the document passed through a lawyer's office. The issue is whether the court can be satisfied, on the face of the document, that the oath was administered on a stated date in the presence of the commissioner and the deponent.

[6] The law is settled. In *Mandishayika* v *Sithole* CIV 331/13 HH 798/15, the court held that the deponent must take the oath in the presence of the commissioner, the commissioner must append his or her signature in the presence of the deponent, and the commissioner must endorse the date on which the oath was administered. Those acts must occur contemporaneously. The Supreme Court confirmed that position in *Ariston Management Services* v *Econet Wireless Zimbabwe Limited* SC 123/23, holding that an undated founding affidavit was invalid and rendered the application a nullity.

[7] The reason for the rule is practical and constitutional. An affidavit is not merely a written statement. It is sworn evidence. Without the date of attestation, the court cannot ascertain whether the oath was properly administered, whether it was administered before or after filing, whether it was administered contemporaneously with the deponent's signature, or whether the document was completed piecemeal. In Ariston, the Supreme Court expressly rejected the contention that the absence of a date was a harmless omission.

[8] I also take note of *Nengwekuru* v *Commissioner General of Police* N.O. and Police Service Commission N.NO. HCH 3162/25, HH 86/26, a matter in which I dealt with a defective opposing affidavit. There, the affidavit was struck out because it had been commissioned by an interested police legal officer. The principle is the same. A defective affidavit, where the defect goes to the integrity of the oath, is inadmissible and cannot be relied upon.

[9] Counsel for the first respondent urged the court to prefer substance over form. That approach is not available where the defect attacks the oath itself. Courts may overlook errors which do not affect the sworn character of the evidence. They may not create an oath by inference. The date stamp appearing below the commissioner's particulars does not cure the blank jurat. It does not state that the oath was administered on that day. Nor does it show that the acts required by law occurred contemporaneously.

[10] The point *in limine* is therefore upheld. The first respondent's opposing affidavit is fatally defective. It is struck out. There being no valid opposing affidavit, there is no opposition properly before the court. The application is accordingly treated as unopposed.

[11] That conclusion does not mean that the court grants the order mechanically. Even in an unopposed matter, the applicant must establish a legal basis for the relief sought. I now turn to the merits on the papers properly before me.

[12] The applicant's case is that it paid for land in 2008 and thereafter experienced difficulties in finalising its compensation land in Mabelreign Township. It approached the Minister in 2021. The Minister caused investigations to be carried out under the leadership of Mrs Tshuma, Deputy Director in the Legal Services Department. The outcome was a memorandum dated 28 July 2021, which recorded the background, assessed what remained due to the applicant, and recommended that the applicant be allocated 30.773 hectares.

[13] The papers show that this was not a casual internal note floating without consequence. The memorandum recommended that the applicant be allocated 30.773 hectares and that the Ministry identify and allocate the balance due to the applicant. Thereafter, by letter dated 29 September 2021, the Ministry offered compensation land measuring 30.773 hectares to the applicant for land committed and paid for in 2008.

[14] The applicant accepted the offer. The Stateland Management Section then prepared a memorandum dated 3 February 2022 seeking the Minister's authority to allocate pieces of land in the Mabelreign/Sentosa area as compensation to the applicant. That authority was granted. The Stateland Office also wrote to the Department of Spatial Planning and Development on 18 November 2021 confirming that land had been identified within Mabelreign Township, that the Surveyor General's office had supplied maps indicating that the identified land was Stateland or Crown land, and requesting the requisite stand numbers.

[15] The applicant thereafter prepared site diagrams using the Surveyor General map. The diagrams were allocated Plan Reference Numbers HOA1374 to HOA1391. The applicant's letter dated 3 October 2023 requested stand numbering for those plan references. The application before the court seeks to compel the administrative steps which should have followed from that paper trail: numbering, survey and transfer.

[16] Of significance is that the Ministry's own later correspondence did not treat the applicant as a stranger. On 24 January 2024, the Chief Director for Spatial Planning and Development wrote to the applicant advising that the office was processing a comprehensive list of greenways in Mabelreign and that the stand-numbered diagrams processed at City of Harare had been handed over to Stateland Office for processing.

[17] Yet, on 14 March 2024, the Ministry took a different course. It wrote that because demand for stands in Mabelreign was high and public interest was involved, no single entity could be allocated more than what would be considered reasonable. It then proposed that the applicant be issued with title deeds for certain smaller stands measuring 1.5808 hectares and that the remaining balance be allocated in Lot 2 of Stuhm, subject to valuation.

[18] That was a material volte-face. The first respondent's Ministry had investigated the claim, accepted the applicant's entitlement, offered 30.773 hectares, accepted that land had been identified, caused maps to be used, and allowed plan reference numbers to be processed. It could not later disown those processes by bare assertion.

[19] The first respondent's attempted answer, had it been properly before the court, was that the applicant had no right, that internal memoranda could not confer rights, that the land had been re-planned under HOE58, that allocations had been made to other beneficiaries including Members of Parliament, and that performance had become impossible. Those allegations are not supported by a valid affidavit. They therefore carry no evidential weight.

[20] Even if one were to look at them for context, they are not backed by documentary proof showing lawful cancellation of the applicant's allocation, lawful withdrawal of the 29 September 2021 offer, lawful cancellation of the plan reference numbers, lawful re-planning after notice to the applicant, or any procedurally fair decision affecting the applicant's accrued rights. The first respondent cannot plead his own unexplained administrative reversal as a defence to a mandamus.

[21] Public authorities must act lawfully, reasonably and fairly. Where a Ministry investigates a claim, makes a recommendation, approves it, communicates it, acts upon it, and causes further administrative steps to be taken, it creates at the very least a legitimate expectation that the process will be completed unless lawfully withdrawn after due process. No such due process is shown here.

[22] I am satisfied that the applicant has established a clear right. The right arises from the Ministry's own investigative findings, offer letter, acceptance, subsequent memoranda, identification of land, processing of plan references, and correspondence confirming that the relevant diagrams were being processed. The respondents are the public offices whose cooperation is necessary to complete the numbering, survey and transfer process.

[23] I am also satisfied that there is no adequate alternative remedy. The suggestion that the applicant should pursue alternative land or damages is not an answer to a claim for specific performance where the land has already been identified and processed through official channels. Nor is a vague internal review an adequate remedy where the very authority asserting the review is the authority that created and then reversed the applicant's position.

[24] The prejudice to the applicant is self-evident. The applicant has been kept in administrative limbo despite a clear documentary trail. It has had to litigate to compel public officers to perform steps which their own records show were already underway.

[25] The applicant is entitled to relief. The first respondent's conduct in filing a defective affidavit and then seeking to rely on an administrative volte-face justifies an order of costs against him.

[26] In the result, the point *in limine* is upheld and the application is granted as prayed for.

IT IS ORDERED THAT:

The Applicant's application be and is hereby granted.

The fifth Respondent is ordered to process stand numbering in liaison with the first Respondent on stands created on diagrams on plan reference numbers HOA1374, HOA1375, HOA1376, HOA1377, HOA1378, HOA1379, HOA1380, HOA1381, HOA1382, HOA1383, HOA1384, HOA1385, HOA1386, HOA1387, HOA1388, HOA1389, HOA1390 and HOA1391, Mabelreign Township.

The first Respondent is ordered to issue a survey instruction to the fourth Respondent on stands created on diagrams on plan reference numbers HOA1374, HOA1375, HOA1376, HOA1377, HOA1378, HOA1379, HOA1380, HOA1381, HOA1382, HOA1383, HOA1384, HOA1385, HOA1386, HOA1387, HOA1388, HOA1389, HOA1390 and HOA1391, Mabelreign Township within 5 days from the date of submission and approve them.

The fourth Respondent is hereby ordered to appoint a Land Surveyor to carry out title survey, process the title diagrams for stands and issue Dispensation Certificates on stands in Plan Reference Numbers HOA1374, HOA1375, HOA1376, HOA1377, HOA1378, HOA1379, HOA1380, HOA1381, HOA1382, HOA1383, HOA1384, HOA1385, HOA1386, HOA1387, HOA1388, HOA1389, HOA1390 and HOA1391, all situated in Mabelreign Township, within 5 days from the date of submission and approve them.

Upon issue of the approved survey diagrams and dispensation certificates from the fourth Respondent, the first and third Respondents are ordered to transfer to the Applicant certain pieces of land situate in the District of Salisbury, being stands on Plan Reference Numbers HOA1374, HOA1375, HOA1376, HOA1377, HOA1378, HOA1379, HOA1380, HOA1381, HOA1382, HOA1383, HOA1384, HOA1385, HOA1386, HOA1387, HOA1388, HOA1389, HOA1390 and HOA1391, respectively, within 15 days of issue.

Upon default and failure to comply with Orders in paragraphs 2, 3, 4 and 5 of this order by the first, third, fourth and fifth Respondents, the second Respondent is hereby directed to sign all the necessary documents to issue the relevant order to the fourth Respondent to title survey and issue dispensation certificates in the office of the fourth Respondent, process numbering of the said stands in the office of the fifth Respondent and consequently sign all documents to effect transfer in the office of the third Respondent.

The first Respondent shall pay costs.

MAMBARA J :……

John Mugogo Attorneys, applicant's legal practitioners
Civil Division of the Attorney-General's Office, first respondent's legal practitioners